

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 15: Space and Identity

Fordham University, New York, August 15-16, 2018

Fluid Boundaries: Rivers and the Jewish Communities of Early Modern Ashkenaz

Debra Kaplan, Bar Ilan University and Joshua Teplitsky, Stony Brook University

In this discussion we explore an aspect of space that is often overlooked in studies of Jewish life in the early modern period: the interactions between Jews and the natural world. Our session will focus around Jewish engagement with rivers, and how waterways shaped the spatial dimensions of daily life. In European settlements across the continent rivers bisect cities and towns, and were arteries of commerce, trade, and travel. Waterways also connected settlements, were a site of contact for non-elite Jews, and, as a force of nature, impacted the lives of Jewish and Christian neighbors. Rivers could be used as a resource for cleanliness and hygiene, but they also posed danger to residents during periods of excessive rain and flooding. The various rivers that we will discuss were both within and beyond human civilization. They were also a subject of legal conundra. Our discussion will revolve around three sources from Central Europe that examine the ways in which thinking with rivers can lead us to explore not only the human-made spaces of a landscape, but also the natural elements at their outer limits. Each source is from a different genre, yet each one highlights how a consideration of rivers enriches our understandings of Jewish and Christian spaces. One, drawn from custom literature, explores the topography of flooding and the experiences of rising water levels; another, drawn from the archives of Prague, explores class and religion from the perspective of state administration, and a third, from halakhic literature, demonstrates how rivers connected and divided urban and rural communities. Each source sheds light on an aspect of the experience of environment and the role of space in Jewish life, and together offer a portrait of the place of water as a zone of physical and cultural interaction.

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Juspe Schammes, *Minhagim K"K Warmaisa*, eds. B.S. Hamburger and E. Zimmer, 2 vols. (Jerusalem, 1988) 2, Appendix 1.

“A flood was in the land” according to the small counting [a numerical equivalent to the year]

“The water was on the surface of the land” according to the small counting [a numerical equivalent to the year]

“Tevet” according to the small counting [a numerical equivalent to the year]
Namely, the year [5]411

In the month of Tevet on Sunday, 22 Tevet [5]411 [15 January 1651], the waters of the Rhine river swelled, and they came into our place, Warmaisa [Worms], up until in our street, people would enter the lower gate by boat, and from there, anyone who wished would cross through the Rheinpforte [a gate] and beyond. And similarly, one would enter the Viehpforte by boat, and in Wollgasse, and also in Schmidtgasse and also in Hahngasse, and in order to access all of these [streets], people crossed through the Rhine Gate. And similarly, it was necessary to use a boat to cross from one street to another, because all of the streets that abutted the shore of the Rhine were filled with water. And I, Juspe Schammes, saw with my own eyes the water that went so high that it reached level of the windows of the guest house known as Zur Rosen. And the upper bucket that was hung on the chain of the well that was in Rheingasse, opposite the opening of the well, was under water, and the well itself was not visible, for it was submerged beneath the water. And all of the residents of the Rheingasse street and the abovementioned streets, were forced to leave their homes and to empty [their homes] of all of their possessions, and to reside in other homes that were secure from water. And even in some of those streets in which the water had not reached, the basements were filled with water, and it was necessary to make an effort to save the wine barrels that were in them [the cellars] and to weight them down so that it was certain they would remain in their place. And thus I saw with my own eyes in our street, in the house of Itzik zum Riesen, and in the house of the parnas [lay leader] Rav Anshel zu Wolfen, how many barrels of wine were submerged, and they were not visible because the water had covered them, no one could see them, and most of the cellars on the street had water in them, and they [the water] came into the cellar of

the parnas, the honorable R. Baruch zur Sonnen. Only the cellars in the lower part of the street were filled with water, and the upper ones were not filled with as much water, and so it was with everything -- the more you ascended, the less water there was when compared to [buildings] on lower ground.

And on the other side of the Rhine river, the [overflow of] water stretched 2-3 parasangs [inland] such that travelers were unable to traverse the imperial roads, but rather, they needed to take a large detour, [which lasted] for a long time until the water receded. And even when the waters of the Rhine went down to their normal level, in any event, the water that had reached the fields in some of the low places remained for a long time until they receded, and it caused great delay to travelers, and this began in [5]411 in the month of Tevet, as was mentioned above.

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כמבו"ל הי"ה באר"ץ לפ"ק
המ"ם הי"ו ע"ל פנ"י האדמ"ה לפ"ק
טב"ת לפ"ק
דהיינו בשנת תי"א

בחודש טבת מיום א' כ"ב טבת תי"א, גברו המים מי רינו"ס והלכו תוך מקומינו וורמיישא, עד שברחובותינו בשער תחתון היו נכנסין בספינה, ומשם עבר הרוצה לעבור דרך שער ריין פפארט ולהלאה וכן הוו נכנסין בספינה מן הויך פפארט, ובתוך וואל גס, וכן בתוך שמי"ט ג"ס וכן בתוך האן גס, ובכולן עברו דרך שער רינו"ס, וכן היו צריכין לעבור בספינה מרחוב לרחוב, כי כל הרחובות הסמוכי' לצד הריין היו כולם מליאים מים. ואני יוזפא שמש ראיתי בעיני המים שהיו גובהין עד שהיו שוין לחלונות בית האושפי"זא הנקרא צו"ר רוזין. והדלי העליון התולה בשלשלת בבאר שבריי"ן ג"ס, נגד חלל הבאר, היה עומד על המים, ומן הבאר עצמו לא נראה מאומה, כי היה משוקע בתוך המים. וכל דיירי רחוב ריין גס ורחובות הנ"ל, היו מוכרחין לצאת מבתיהם ולהוציא את כל אשר להם ולדור בבתים אחרי בטוחי' ממים. ואף כמה רחובות שאין המים היו יכולין להגיע שם, היו המרתפות מליאי' מים, עד שהיו צריכין לעשות תחבולה להציל החביתין של יין שבתוכם ולהכבידן כדי שהיו מוכרחין שיונחו על מקומם. וכן ראיתי בעיני ברחובותינו בבית איצק צו"ם ריזן, ובבית הפרנס הר"ר אנשיל צ"ו וואלפ"ין, כמה חביתין ייין משוקעין בתוך, לא נראו כי המים היו מכסם, אין רואה אותם, וכן כמעט רוב מרתפי הרחוב היו בתוכן מים, ובאו תוך מרתף הפרנס כהר"ר ברוך צו"ר זוני"ן, רק שמרתפי הרחוב התחתוני' היו מליאים מים, והעליונים לא היו כל כך מליאי' מים, וכן כולם: העולה מעלה מעלה, היו המים שבתוכן מעטי' מאשר תחתיו.

ובעבר לנהר רינו"ס היו המים ב' ג' פרסאות עד שעוברי דרכים לא היו יכולין לילך דרך המלך, רק בסיבוב גדול, זמן ארוך עד ששקעו המים במקום ההוא. ואף כשהקטינו מי רינו"ס ולהיות כאשר הריין רגיל להיות, מ"מ המים שבאו בשדות בקצת מקומות הנמוכים היו עומדי' המים זמן רב עד ששקעו שם, והיה זה עיכוב גדול לעוברי דרכים וההתחלה היה בשנת תי"א בחודש טבת כנ"ל.

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Yair Hayyim Bacharach, *Havot Yair* (Frankfurt, 1699), no. 115.

A question [was asked] when I was the rabbinical judge and rabbi of the Trier region in lower Germany in Koblenz. And directly across the Rhine river from Koblenz, there lived a wealthy and honorable man named Berman, in the town of Tal [Mülheim-im-Tal]. And on every Sabbath morning, he went to synagogue in Koblenz, for there was a bridge that was constructed out of large boats [that were docked] from one end of the aforementioned river to the other. Only for approximately three months, during the great cold, when ice would [accumulate] on the river, the artisans would dissemble the boats and move them to a special place where the force of the flowing ice would not damage them. In any event, [people] would regularly cross the river using small boats, even on cloudy days, when the cold and ice were not great [severe]. And the wealthy and honorable head of household asked me if he could come to Koblenz in the mornings on the holy Sabbath in order to pray with a quorum of ten [men] and to hear the Torah reading, via a boat that he would rent on Sabbath eve [Friday] from a captain who would ferry him across. And I did not wish to permit this, for I had inquired and heard from older rabbis that rabbis of previous generations had been asked this and did not permit it....

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שאלה בהיותי אב"ד ומ"ץ במדינת טריר בג"ת בק"ק קובלענץ והיה דר שם נגד קובלענץ מעבר הנהר
ריין ב"ב עשיר מכובד שמו בערמן בכפר טאל והי' הולך לבה"כ עכ"פ ביום השבת בבקר לקובלענץ
והיה שם גשר עשויה ע"י ספינות גדולות מעבר לעבר נהר הנ"ל רק שכמשלש חדשים בימי הקור
הגדול והליכות הגליד על הנהר היו מפרקין האומנים את בנין הגשר ומוליכין הספינות למקום מיוחד
ששם לא יוזקו מכח הגליד ההולך בכח גדול. ומ"מ היו שכיחים עוברים מעבר לעבר ע"י ספינות
קטנות גם לפעמי' שהיה יומא דעיבא ואין הקור והגליד גדול ושאלני ב"ב העשיר ומכובד אם יכול לבא
לקובלענץ בבקר בבקר יום ש"ק להתפלל בעשרה ולשמוע קריאת התורה. בספינה שישכור מע"ש
אצל ספין המעבירו ולא רציתי להתיר מפני שחקרתי ושמעתי דרבנן קשישא דהוו שם מקמי ידי
רבנים ומ"ץ נשאלו ולא התירו....

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Národní Archiv, Praha (National Archives of the Czech Republic, Prague), SM J4/ 34

Concerning /titles.../ their excellence and gracious masters, the royal Stadthalter, /titles.../ To respond to the chief's of the royal Old Town of the City of Prague account of the matter of the Jewish bathers, which was submitted on the 5th of September.

The royal governor was able to to gather from the report the causes that moved the magistrate of the Royal Old Town of Prague to have the city judge take away the clothes of the scandalous Jewish bathers and as well as the fact that the collected clothes and reported objects were returned to the Jews, therefore the Jews ought to no longer complain.

However, even though the private Jewish quarrel has been solved, it is an entirely reasonable thing of public interest to further restrain to a certain extent this presumptuous and scandalous Jewish bathing in the Moldau, and to proscribe how the boisterous Jewish community will bathe in the future, by rationing the means and times of their bathing, and to stringently punish those who behave otherwise.

Thus the Stadthauptmann should indicate the following points to the Jewish community and require their observance, and to publicize them in all of the Jewish synagogues to make it known that:

1. Each and every Jew—except for on their Sabbath—are not permitted to bathe at any other time than first after 10 in the long days and first after nine in the short days.
2. On Sabbath-times after 7 o'clock in the evening or in the very early morning they may perform their bathing.
3. The bathing Jews should do so without any tumult and in small numbers, behave honorably and cause no annoying frivolousness. And no Jew may

¹ With thanks to Verena Kasper-Marienberg (North Carolina State University) for aid in producing a more accurate and flowing translation.

bathe in the Moldau that does not appear fully surrounded by a bathing shirt, and nothing less than that.

4. On the great and mother-of-God holidays the Jews are entirely proscribed from bathing and are hereby prohibited, by which all of the Jewish community will come under stringent punishment without exception, and the Stadthauptman will make sure this order will be obeyed in all points. Thereby the magistrate will ensure that any transgressions of the Jewish community will not be handled in an unordered way and cause any tumult between Jews and Christians.

Furthermore the Stadthauptman will instruct the Old Town magistrate in all the above mentioned points and explain that in case there will be another Jew with a scandalous way of bathing, first the court has to inform the Jewish Elders so they can deal with it and should not immediately proceed with tumultuous actions..

From the Prague Consistory

9th September 1712

Decree to the Old Town Hauptmann concerning the restricted Jewish bathing in the river Moldau

de dato 9th Sept. anno 1712

Concerning the report of the Old Town Hauptman with attached files and interrogations related to the robbing of Jews during the recent Jewish bathing tumult

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Accep. 10 expedit. 11 Sept.

Von /:tit:/ Ihrer Excells und gnaden dere Königl. Herrn Stadthalters wegen /:tit:/ Herren Hauptmann der Königl. alten Stadt Prag auf dessen *in mua* des Jüdischen baadens den 5 Sept. eingereichten bericht anzufügen:

Ein Königl. *Gouverno* hatte hieraus ersehen, aus was Ursachen der *Magistrat* der Königl. alten Stadt Prag bewogen worden, deren *Scandalose* baadenden Juden die Kleider durch den Stadtrichter weg nemmen zu lassen, und welcher gestalten die entnommenen Kleider und Sachen berichtlichen Juden würklich *restituiert* worden also daß Sie Juden nichts mehr zu *praetendiren* haben. Gleichwie nun solcher gestalten *respectu privati* der Jüdische *querel* abgethan worden, *respectu publici* aber eine gantz billige Sach ist, das bißherige *prasumptuos-* und *scandalose* Jüdische baaden in der Moldau auf gewisse maaß und weis zu *restringiren*, [new page] und der so außgelassenen Judenschafft *pro Vosina* [ed.: ?] Vorzuschreiben, wie Sie sich in künfftig in baaden *ratione modi et temporis* unter sonst ergehend scharffen bestraffung zu Verhalten hätten; dahero dan Er Herr Stadthaubtman nachfolgende *puncta* der Judenschafft zur schuldigsten *observantz* anzudeüthen, und in allen Juden Schulen *publiciren* zu lassen wissen wird; daß

1. allen und jeden Juden außer halb Ihres Schabes in denen langen tagen erst nach 10. in denen kurtzen tagen aber erst nach 9. Uhr abendts mithin zu keiner anderer zeit zu baaden erlaubet seyn solle; wo Sie
2. In Schabes zeit nach 7. Uhr abendts oder aber gantz fruhe Ihr baaden Verrichtem werden können

¹ With thanks to Verena Kasper-Marienberg (North Carolina State University) for aid in producing a more accurate transcription.

3. Sollen die baadende Juden ohne allen tumult und in kleiner anzahl sich einfinden Ehrbar verhalten und keine ~~Scandale~~ [new page] ärgerliche leichtfertigkeit verüben. Also daß auch keinem Juden zu baaden in der Moldau zu baaden erlaubt seÿn soll, der da nicht mit einen Schirtzl versehen, und umbegeben seÿn wird, nicht weniger soll

4. Soll hinführo vor denen grösseren und Mutter gottes feÿrtägen Ihnen Juden dieses baaden gäntzlich untersaget, und hiermit Verbotten seÿn, welchem allen die Judenschafft unter schwerer bestraffung unfehlbahr nachkommen, Er Herr Stadthaubtmann aber darob seÿn solle, damit dieses *mandato in omnibar punctis* nachgelebet werden.

~~Sollte sich aber einige contra
venienz ereignen, da
wird der Herr Stadthaubtmann
sich mit~~

[ed. Marg:] Damit aber auch *ex parte* des
Magistrats *antiq warden* [ed.: ?]

Sie bey einiger anseithen
der Judenschafft ereignenden
~~Inconvenienz~~ Excedirung]

nichts unordentlicher weise Vorgenommen und hierdurch einiger Tumult unter Juden und Christen causiret werden möge;

Alß wird Er Herr Stadthaubtman, dem Altstädter Magistrat obige Puncta gleichfalls [new page] zu intimiren beÿm obenstehenden soll zu bedeuten wissen, das beÿ derleÿ von denen Juden unter-nemmenden Scandalosen baadens-arth, forderist durch das gericht denen Juden Eltisten, die alsogleiche einstellung anzudeütten, ~~von da aber die parition nicht erfolgen sollte, als dan erst wider die Excedent. entlicher jedoch ohne grossen~~ Und nicht so gleich tumulta zu verfahren seÿn wird.

Ex Cons. Praga 9.
Septembris 1712

Decretum an den Altstädter
Herrn Haubtmann, das in certis passi-
bus restringirte Jüdische baaden
in den Moldau flueß betrf.

dd. 9 Sept. A. 1712.

Exp. auf beÿliegende relation des Alt-
stadter Herrn Haubtmanns mit beÿ-
liegenden Actis und Examinibus derer
beÿ Jüngstem baad Tumult beraubten
Juden.